

Reserved On: 21.11.2024 vs Kishori Lal And Others on 13 December, 2024

Author: Vivek Singh Thakur

Bench: Vivek Singh Thakur

2024:HHC:14370 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Appeal No. 161 of 2014 Reserved on: 21.11.2024 Date of Decision: 13.12.2024 State of H.P. ...Appellant.

Versus

Kishori Lal and others

...Respondents

Coram

Hon'ble Mr Justice Vivek Singh Thakur, Judge. Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting?1 Yes.

For the Appellant/State : Ms. Seema Sharma, Deputy Advocate General.

For the Respondents : Ms. Salochna Rana, Advocate. Rakesh Kainthla, Judge The present appeal is directed against the judgment dated 29.4.2013, passed by learned Additional Sessions Judge, Kangra at Dharamshala, H.P., (learned Trial Court), vide which the respondents (accused before the learned Trial Court) were acquitted of the commission of offences punishable under Sections 498-A and 306 read with Section 34 of the Indian Penal Code (IPC). (Parties shall hereinafter be referred to in the same Whether reporters of Local Papers may be allowed to see the judgment? Yes.

2024:HHC:14370 manner as they were arrayed before the learned Trial Court for convenience).

2. Briefly stated, the facts giving rise to the present appeal are that the police presented a challan against the accused before the learned Trial Court for the commission of offences punishable under Sections 498A and 306 read with Section 34 of IPC. It was asserted that informant Vijay Kumar (PW1) had a daughter named Dimple Sharma. She was married to accused Yash Pal on 28.7.2007 as per Hindu Rites and Customs. One son, Krish Sharma, was born to her. The informant provided the dowry to Dimple at the time of her marriage as per his capacity; however, the accused Sonia, Yash Pal, Tripta Devi, Kishori Lal and Lucky used to taunt Dimple by saying what was provided to her by her parents. Her husband, Yashpal, had physically assaulted her on two separate occasions. The informant counselled Dimple by saying that the situation would improve with time; however, the accused continued to harass Dimple. Krish Sharma's mundan ceremony was solemnised on 10.2.2011. Amit Kumar (PW6), brother of Dimple, visited her matrimonial home on 9.2.2011 to attend the ceremonies. He gave shagun to Krishan, but the accused were not happy with the shagun. They 2024:HHC:14370 stated that no ornament was brought for Krish. Amit Kumar (PW6) narrated this fact to the informant. The informant replied that he would arrange the ornaments on the next

day. Amit Kumar (PW6) also revealed that the accused were taunting Dimple for not bringing ornaments. Dimple told Monika (PW9) that the accused were harassing her repeatedly, and she would consume pills due to the harassment. Monika counselled her. The informant attended the Mundan ceremony on 10.2.2011. He returned at 4.30 PM. The mobile phone of the informant's relative was left in the matrimonial home of Dimple. The informant's wife, Nirmala (PW7), called on the mobile number. The mobile phone was picked up by Sonia, but she did not permit Dimple to talk to Nirmala. Dimple's husband-Yash Pal, talked to Nirmala, but he misbehaved with her. Kishori Lal also threatened Nirmala and stated that she would get the result on the same day. Kishori Lal called the informant at 8.30 PM and said that Dimple was serious. He revealed after about ten minutes that she was being taken to the hospital and she had died on the way. The informant and his relatives went to the house of the accused and found that Dimple had died. An intimation was given to the police. ASI Kuldeep Sharma (PW13) and Constable Sanjeev visited 2024:HHC:14370 the village. Vijay Kumar (PW1) made a statement (Ex.PW1/A), which was sent to the Police Station through Constable Sanjeev for the registration of FIR. FIR (Ex.PW14/A) was registered in the police station. ASI Kuldeep Sharma (PW13) conducted the initial investigation. He prepared the inquest reports (Ex.PW13/A and Ex.PW13/B) and the spot map (Ex.PW13/C). He filed an application (Ex.PW9/A) for conducting a postmortem examination of Dimple. Dr Pankaj (PW10) conducted a postmortem examination of the dead body and found that she had not sustained any injuries. He preserved the viscera and handed it over to the police official accompanying the dead body. He issued the post-mortem report (Ex.PW10/B). The photographs of the dead body (Ex.PW3/A and Ex.PW3/F) were taken, which were transferred to CD (Ex.PW13/D). SI Tilak Raj (PW14) conducted further investigation. He recorded the statements of witnesses as per their version. He filed an application (Ex.PW5/A) for obtaining the case summary of the deceased. Dr. Ashish Lakhi (PW5) issued the report (Ex.PW5/B). The case property was sent to FSL. The result of the analysis (Ex.PW14/C) was issued in which it was mentioned that phosphine gas was detected in the viscera. The final report 2024:HHC:14370 (Ex.PW10/C) was issued by Dr. Pankaj (PW10), stating that the cause of death was phosphate poisoning, which may be caused by aluminium phosphide. Statements of witnesses were recorded as per their version, and after the completion of the investigation, a challan was prepared and presented before the Court of learned Judicial Magistrate First Class, Dehra, who committed it to learned Sessions Judge Kangra for trial. Learned Sessions Judge Kangra assigned the case to learned Additional Sessions Judge, Fast Track Court, Kangra (learned Trial Court).

3. The learned Trial Court charged the accused with the commission of offences punishable under Sections 498-A and 306 read with Section 34 of IPC, to which they pleaded not guilty and claimed to be tried.

4. The prosecution examined 14 witnesses to prove its case. Vijay Kumar (PW1) is the informant and father of deceased Dimple. Ajay Kumar (PW2) is the cousin, Amit Kumar (PW6) is the brother, Nirmala Devi (PW7) is the mother, Poonam Sharma (PW8) and Monika (PW9) are sisters-in-law of the deceased. Dharam Pal (PW3) took the photographs of the dead body. Narain Dass (PW4) took the deceased to the hospital. Dr. Ashish Lakhi (PW5) was running a hospital where the deceased was brought in 2024:HHC:14370 dead condition. Dr Pankaj (PW10) conducted a postmortem examination of the deceased. HC Sultan Singh (PW11) was working as MHC, with whom the case

property was deposited. Paras Ram (PW12) accompanied the dead body and brought the viscera to the Police Station. ASI Kuldeep Sharma (PW13) and SI Tilak Raj (PW14) conducted the investigation.

5. Accused in their statements recorded under Section 313 of Cr.P.C. admitted the relationship between Dimple and Yash Pal. They denied the rest of the prosecution case. They stated that they were innocent, and a false case was made against them. They did not choose to lead any defence.

6. Learned Trial Court held that Narayan Dass (PW4) took Dimple to the hospital. Dimple told him on the way that she had mistakenly consumed poison. The testimonies of the relatives of Dimple were not corroborated by any independent witness. There was no satisfactory evidence of the payment of 5100/- as shagun to Krish. Dimple had not made any complaint to the police or Gram Panchayat. The evidence was not sufficient to prove that the accused had created such circumstances that the deceased was left with no option except to commit suicide. Hence, the accused were acquitted.

2024:HHC:14370

7. Being aggrieved from the judgment passed by the learned Trial Court, the State has filed the present appeal asserting that the learned Trial Court appreciated the evidence in a slipshod and perfunctory manner. Unrealistic standards were laid down to evaluate the reliable and cogent prosecution evidence. The reasoning of the learned Trial Court is manifestly unreasonable and unsustainable. The prosecution witnesses had categorically stated that the accused used to harass the deceased, and she was fed up with the harassment. She had expressed her intention to take poison to end her life. Learned Trial Court ignored this evidence and erred in acquitting the accused. Therefore, it was prayed that the present appeal be allowed and the judgment passed by the learned Trial Court be set aside.

8. We have heard Ms. Seema Sharma, learned Deputy Advocate General, for the appellant-State, and Ms. Salochna Rana, learned counsel for the respondents/accused.

9. Ms. Seema Sharma, learned Deputy Advocate General for the appellant-State, submitted that the learned Trial Court erred in acquitting the accused. It was duly proved by the testimonies of the informant, his wife and his son that the accused used to harass the deceased. She had expressed her 2024:HHC:14370 intention to commit suicide to Monika. The prosecution had proved on record that the accused had created such circumstances that the deceased was left with no other option but to commit suicide. Therefore, she prayed that the present appeal be allowed and the judgment passed by the learned Trial Court be set aside.

10. Ms Salochna Rana, learned counsel for the respondents/accused, supported the judgment passed by the learned Trial Court and submitted that no interference is required with it. She submitted that the prosecution witnesses had made general and vague statements that were not sufficient to prove the cruelty. The testimony of Monika is inherently suspect as she did not take any steps to save Dimple's life after she had disclosed the harassment. Therefore, she prayed that the

present appeal be dismissed.

11. We have given considerable thought to the submissions made at the bar and have gone through the records carefully.

12. The present appeal has been filed against a judgment of acquittal. It was laid down by the Hon'ble Supreme Court in 2024:HHC:14370 Mallappa v. State of Karnataka, (2024) 3 SCC 544: 2024 SCC OnLine SC 130 that while deciding an appeal against acquittal, the High Court should see whether the evidence was properly appreciated on record or not; second whether the finding of the Court is illegal or affected by the error of law or fact and thirdly; whether the view taken by the Trial Court was a possible view, which could have been taken based on the material on record. The Court will not lightly interfere with the judgment of acquittal. It was observed:

"25. We may first discuss the position of law regarding the scope of intervention in a criminal appeal. For that is the foundation of this challenge. It is the cardinal principle of criminal jurisprudence that there is a presumption of innocence in favour of the accused unless proven guilty. The presumption continues at all stages of the trial and finally culminates into a fact when the case ends in acquittal. The presumption of innocence gets concretised when the case ends in acquittal. It is so because once the trial court, on appreciation of the evidence on record, finds that the accused was not guilty, the presumption gets strengthened, and a higher threshold is expected to rebut the same in appeal.

26. No doubt, an order of acquittal is open to appeal, and there is no quarrel about that. It is also beyond doubt that in the exercise of appellate powers, there is no inhibition on the High Court to reappreciate or re-visit the evidence on record. However, the power of the High Court to reappreciate the evidence is a qualified power, especially when the order under challenge is of acquittal. The first and foremost question to be asked is whether the trial court thoroughly appreciated the evidence on record and 2024:HHC:14370 gave due consideration to all material pieces of evidence. The second point for consideration is whether the finding of the trial court is illegal or affected by an error of law or fact. If not, the third consideration is whether the view taken by the trial court is a fairly possible view. A decision of acquittal is not meant to be reversed on a mere difference of opinion. What is required is an illegality or perversity.

27. It may be noted that the possibility of two views in a criminal case is not an extraordinary phenomenon. The "two-views theory" has been judicially recognised by the courts, and it comes into play when the appreciation of evidence results in two equally plausible views. However, the controversy is to be resolved in favour of the accused. For, the very existence of an equally plausible view in favour of the innocence of the accused is in itself a reasonable doubt in the case of the prosecution. Moreover, it reinforces the presumption of innocence. Therefore, when two views are possible, following the one in favour of the innocence of the accused is the safest

course of action. Furthermore, it is also settled that if the view of the trial court, in a case of acquittal, is a plausible view, it is not open for the High Court to convict the accused by reappreciating the evidence. If such a course is permissible, it would make it practically impossible to settle the rights and liabilities in the eye of the law.

28. In *Selvaraj v. State of Karnataka* [*Selvaraj v. State of Karnataka*, (2015) 10 SCC 230; (2016) 1 SCC (Cri) 19]: (SCC pp. 236-37, para 13)

"13. Considering the reasons given by the trial court and on an appraisal of the evidence, in our considered view, the view taken by the trial court was a possible one. Thus, the High Court should not have interfered with the judgment of acquittal. This Court in *Jagan M. Seshadri v. State of T.N.* [*Jagan M. Seshadri v. State of T.N.*, (2002) 9 SCC 639; 2003 SCC (L&S) 1494] has laid down that as the appreciation of evidence made by the trial court while recording the acquittal is a reasonable view, 2024:HHC:14370 it is not permissible to interfere in appeal. The duty of the High Court while reversing the acquittal has been dealt with by this Court, thus: (SCC p. 643, para 9) '9. ... We are constrained to observe that the High Court was dealing with an appeal against acquittal. It was required to deal with various grounds on which acquittal had been based and to dispel those grounds. It has not done so. Salutary principles while dealing with appeal against acquittal have been overlooked by the High Court. If the appreciation of evidence by the trial court did not suffer from any flaw, as indeed none has been pointed out in the impugned judgment, the order of acquittal could not have been set aside. The view taken by the learned trial court was a reasonable view, and even if by any stretch of the imagination, it could be said that another view was possible, that was not a ground sound enough to set aside an order of acquittal.'"

29. In *Sanjeev v. State of H.P.* [*Sanjeev v. State of H.P.*, (2022) 6 SCC 294; (2022) 2 SCC (Cri) 522], the Hon'ble Supreme Court analysed the relevant decisions and summarised the approach of the appellate court while deciding an appeal from the order of acquittal. It observed thus: (SCC p. 297, para 7) "7. It is well settled that:

7.1. While dealing with an appeal against acquittal, the reasons which had weighed with the trial court in acquitting the accused must be dealt with in case the appellate court is of the view that the acquittal rendered by the trial court deserves to be upturned (see *Vijay Mohan Singh v. State of Karnataka* [*Vijay Mohan Singh v. State of Karnataka*, (2019) 5 SCC 436 :

(2019) 2 SCC (Cri) 586] and *Anwar Ali v. State of H.P.* [*Anwar Ali v. State of H.P.*, (2020) 10 SCC 166 :

(2021) 1 SCC (Cri) 395]).

2024:HHC:14370 7.2. With an order of acquittal by the trial court, the normal presumption of innocence in a criminal matter gets reinforced (see *Atley v. State of U.P.* [*Atley v. State of U.P.*, 1955 SCC OnLine SC 51; AIR 1955 SC 807]).

7.3. If two views are possible from the evidence on record, the appellate court must be extremely slow in interfering with the appeal against acquittal (see *Sambasivan v. State of Kerala* [*Sambasivan v. State of Kerala*, (1998) 5 SCC 412: 1998 SCC (Cri) 1320])."

13. This position was reiterated in *Ramesh v. State of Karnataka*, (2024) 9 SCC 169: 2024 SCC OnLine SC 2581, wherein it was observed at page 175:

"20. At this stage, it would be relevant to refer to the general principles culled out by this Court in *Chandrappa v. State of Karnataka* [*Chandrappa v. State of Karnataka*, (2007) 4 SCC 415 : (2007) 2 SCC (Cri) 325], regarding the power of the appellate court while dealing with an appeal against a judgment of acquittal. The principles read thus: (SCC p. 432, para 42) "42. ... (1) An appellate court has full power to review, reappraise and reconsider the evidence upon which the order of acquittal is founded.

(2) The Code of Criminal Procedure, 1973 puts no limitation, restriction or condition on the exercise of such power and an appellate court on the evidence before it may reach its own conclusion, both on questions of fact and law.

(3) Various expressions, such as "substantial and compelling reasons", "good and sufficient grounds", "very strong circumstances", "distorted conclusions", "glaring mistakes", etc., are not intended to curtail extensive powers of an appellate court in an appeal 2024:HHC:14370 against acquittal. Such phraseologies are more in the nature of "flourishes of language" to emphasise the reluctance of an appellate court to interfere with acquittal than to curtail the power of the court to review the evidence and to come to its own conclusion. (4) An appellate court, however, must bear in mind that in case of acquittal, there is a double presumption in favour of the accused. Firstly, the presumption of innocence is available to him under the fundamental principle of criminal jurisprudence that every person shall be presumed to be innocent unless he is proved guilty by a competent court of law. Secondly, the accused having secured his acquittal, the presumption of his innocence is further reinforced, reaffirmed and strengthened by the trial court.

(5) If two reasonable conclusions are possible on the basis of the evidence on record, the appellate court should not disturb the finding of acquittal recorded by the trial court."

21. In *Rajendra Prasad v. State of Bihar* [*Rajendra Prasad v. State of Bihar*, (1977) 2 SCC 205: 1977 SCC (Cri) 308], a three- judge Bench of this Court pointed out that it would be essential for the High Court, in an appeal against acquittal, to clearly indicate firm and weighty grounds from the record for discarding the reasons of the trial court in order to be able to reach a contrary conclusion of guilt of the accused. It was further observed that, in an appeal against acquittal, it would not be legally sufficient for the High Court to take a contrary view about the credibility of witnesses, and it is absolutely imperative that the High Court convincingly finds it well-nigh impossible for the trial

court to reject their testimony. This was identified as the quintessence of the jurisprudential aspect of criminal justice."

14. The present appeal has to be decided as per the parameters laid down by the Hon'ble Supreme Court.

2024:HHC:14370

15. A perusal of the FIR shows that the informant had not mentioned any particulars of harassment. He made general allegations that the accused used to taunt the deceased by saying that what was provided by her parents to her. Her mother-in-law and husband had given beatings to Dimple once or twice. It was laid down by the Hon'ble Supreme Court in *Neelu Chopra v. Bharti*, (2009) 10 SCC 184; (2010) 1 SCC (Cri) 286; 2009 SCC OnLine SC 1693 that the Court has to see that particulars of the offences committed by every accused and the role played by the accused in committing the offence are given in the complaint made to the police. It was observed: -

"9. To lodge a proper complaint, the mere mention of the sections and the language of those sections is not the be-all and end-all of the matter. What is required to be brought to the notice of the court is the particulars of the offence committed by each and every accused and the role played by each and every accused in committing that offence.

10. When we see the complaint, the complaint is sadly vague. It does not show as to which accused has committed what offence and what is the exact role played by these appellants in the commission of offence. There could be said something against Rajesh, as the allegations are made against him more precisely, but he is no more and has already expired. Under such circumstances, it would be an abuse of the process of law to allow the prosecution to continue against the aged parents of Rajesh, the present appellants herein, on the basis of a vague and general complaint which is silent about the precise acts of the appellants." (Emphasis supplied)

2024:HHC:14370

16. Similarly, it was held in *Abhishek v. State of M.P.*, 2023 SCC OnLine SC 1083; 2023 INSC 779 that the tendency of false implication by way of general omnibus allegations, if left unchecked, would result in the misuse of the process of law. It was observed:

"13. Instances of a husband's family members filing a petition to quash criminal proceedings launched against them by his wife in the midst of matrimonial disputes are neither a rarity nor of recent origin. Precedents aplenty abound on this score. We may now take note of some decisions of particular relevance. Recently, in *Kahkashan Kausar alias Sonam v. State of Bihar* [(2022) 6 SCC 599], this Court had occasion to deal with a similar situation where the High Court had refused to quash a FIR registered for various offences, including Section 498A IPC. Noting that the foremost issue that required determination was whether allegations made against the in-laws

were general omnibus allegations which would be liable to be quashed, this Court referred to earlier decisions wherein concern was expressed over the misuse of Section 498A IPC and the increased tendency to implicate relatives of the husband in matrimonial disputes. This Court observed that false implications by way of general omnibus allegations made in the course of matrimonial disputes, if left unchecked, would result in misuse of the process of law. On the facts of that case, it was found that no specific allegations were made against the in-laws by the wife, and it was held that allowing their prosecution in the absence of clear allegations against the in-laws would result in an abuse of the process of law. It was also noted that a criminal trial, leading to an eventual acquittal, would inflict severe scars upon the accused, and such an exercise ought to be discouraged.

14. In *Preeti Gupta v. State of Jharkhand* [(2010) 7 SCC 667], this Court noted that the tendency to implicate the 2024:HHC:14370 husband and all his immediate relations is also not uncommon in complaints filed under Section 498A IPC. It was observed that the Courts have to be extremely careful and cautious in dealing with these complaints and must take pragmatic realities into consideration while dealing with matrimonial cases, such as allegations of harassment by the husband's close relations, who were living in different cities and never visited or rarely visited the place where the complainant resided, would add an entirely different complexion and such allegations would have to be scrutinised with great care and circumspection.

15. Earlier, in *Neelu Chopra v. Bharti* [(2009) 10 SCC 184], this Court observed that the mere mention of statutory provisions and the language thereof for lodging a complaint is not the 'be all and end all' of the matter, as what is required to be brought to the notice of the Court is the particulars of the offence committed by each and every accused and the role played by each and every accused in the commission of that offence. These observations were made in the context of a matrimonial dispute involving Section 498A IPC." (Emphasis supplied)

17. It was held in *Achin Gupta v. State of Haryana*, 2024 SCC OnLine SC 759:2024 INSC 369 that asking a person to face criminal allegations without any specific instance of criminal misconduct amounts to an abuse of the process of the Court. It was observed:

"18. The plain reading of the FIR and the chargesheet papers indicate that the allegations levelled by the First Informant are quite vague, general and sweeping, specifying no instances of criminal conduct. It is also pertinent to note that in the FIR, no specific date or time of the alleged offence/offences has been disclosed. Even the police thought fit to drop the proceedings against the other members of the Appellant's family. Thus, we are of the view that the FIR lodged by Respondent No. 2 was 2024:HHC:14370 nothing but a counterblast to the divorce petition & also the domestic violence case.

25. If a person is made to face a criminal trial on some general and sweeping allegations without bringing on record any specific instances of criminal conduct, it is nothing but abuse of the process

of the court. The court owes a duty to subject the allegations levelled in the complaint to thorough scrutiny to find out, prima facie, whether there is any grain of truth in the allegations or whether they are made only with the sole object of involving certain individuals in a criminal charge, more particularly when a prosecution arises from a matrimonial dispute." (Emphasis supplied)

18. It was further held that if there is an involvement of the husband and close relative with an oblique motive, the Court should read between the lines to do substantial justice. It was observed:-

"31. We are of the view that category 7 referred to above should be taken into consideration and applied in a case like the one on hand a bit liberally. If the Court is convinced by the fact that the involvement by the complainant of her husband and his close relatives is with an oblique motive, then even if the FIR and the chargesheet disclose the commission of a cognisable offence, the Court with a view to doing substantial justice should read in between the lines the oblique motive of the complainant and take a pragmatic view of the matter. If the submission canvassed by the counsel appearing for Respondent No. 2 and the State is to be accepted mechanically, then in our opinion, the very conferment of the inherent power by the Cr. P.C. upon the High Court would be rendered otiose. We are saying so for the simple reason that if the wife, on account of matrimonial disputes, decides to harass her husband and his family members, then the first thing she would ensure is to see that proper allegations are levelled in the First Information Report. Many times, the services of professionals 2024:HHC:14370 are availed for the same, and once the complaint is drafted by a legal mind, it would be very difficult thereafter to weed out any loopholes or other deficiencies in the same. However, that does not mean that the Court should shut its eyes and raise its hands in helplessness, saying that whether true or false, there are allegations in the First Information Report, and the chargesheet papers disclose the commission of a cognisable offence. If the allegations alone, as levelled, more particularly in a case like the one on hand, are to be looked into or considered, then why the investigating agency thought fit to file a closure report against the other co-accused? There is no answer to this at the end of the learned counsel appearing for the State. We say so because allegations have been levelled not only against the Appellant herein but even against his parents, brother & sister. If that be so, then why the police did not deem it fit to file a chargesheet against the other co-accused? It appears that even the investigating agency was convinced that the FIR was nothing but an outburst arising from a matrimonial dispute." (Emphasis supplied)

19. It was held that in matrimonial disputes, the parents, including the close relatives, make a mountain out of a molehill, and every matrimonial conduct amounting to nuisance does not constitute cruelty. It was observed:-

"32. Many times, the parents, including the close relatives of the wife, make a mountain out of a mole. Instead of salvaging the situation and making all possible endeavours to save the marriage, their action, either due to ignorance or on account

of sheer hatred towards the husband and his family members, brings about the complete destruction of marriage on trivial issues. The first thing that comes to mind of the wife, her parents and her relatives is the Police as if the Police is the panacea of all evil. No sooner the matter reaches up to the Police, then even if there are fair chances of reconciliation between the 2024:HHC:14370 spouses, they would get destroyed. The foundation of a sound marriage is tolerance, adjustment and respecting one another. Tolerance of each other's fault, to a certain bearable extent, has to be inherent in every marriage. Petty quibbles and trifling differences are mundane matters and should not be exaggerated and blown out of proportion to destroy what is said to have been made in heaven. The Court must appreciate that all quarrels must be weighed from that point of view in determining what constitutes cruelty in each particular case, always keeping in view the physical and mental conditions of the parties, their character and social status. A very technical and hyper-sensitive approach would prove to be disastrous for the very institution of the marriage. In matrimonial disputes, the main sufferers are the children. The spouses fight with such venom in their hearts that they do not think even for a second that if the marriage would come to an end, then what will be the effect on their children? Divorce plays a very dubious role so far as the upbringing of the children is concerned. The only reason why we are saying so is that instead of handling the whole issue delicately, the initiation of criminal proceedings would bring about nothing but hatred for each other. There may be cases of genuine ill-treatment and harassment by the husband and his family members towards the wife. The degree of such ill-treatment or harassment may vary. However, the Police machinery should be resorted to as a measure of last resort and that too in a very genuine case of cruelty and harassment. The Police machinery cannot be utilised for the purpose of holding the husband at ransom so that he could be squeezed by the wife at the instigation of her parents, relatives or friends. In all cases where the wife complains of harassment or ill-treatment, Section 498A of the IPC cannot be applied mechanically. No FIR is complete without Sections 506(2) and 323 of the IPC. Every matrimonial conduct, which may cause annoyance to the other, may not amount to cruelty. Mere trivial irritations, and quarrels between spouses, which 2024:HHC:14370 happen in day-to-day married life, may also not amount to cruelty"

20. Similarly, it was held in *Mamidi Anil Kumar Reddy v. State of A.P.*, 2024 SCC OnLine SC 127: 2024 (2) SCR 252 that the phenomena of false implication by general omnibus allegation in the case of matrimonial dispute are not unknown to the Court. When the allegations are general and omnibus, the prosecution should not be continued. It was observed: -

"14. In the considered opinion of this Court, there is significant merit in the submissions of the Learned Counsel for the Appellants. A bare perusal of the complaint, statement of witnesses and the charge sheet shows that the allegations against the Appellants are wholly general and omnibus in nature; even if they are taken in their entirety, they do not prima facie make out a case against the Appellants. The material on record neither discloses any particulars of the offences

alleged nor discloses the specific role/allegations assigned to any of the Appellants in the commission of the offences.

15. The phenomenon of false implication by way of general omnibus allegations in the course of matrimonial disputes is not unknown to this Court. In *Kahkashan Kausar alias Sonam v. State of Bihar* (2022) 6 SCC 599, this Court dealt with a similar case wherein the allegations made by the complainant-wife against her in-laws u/s. 498A and others were vague and general, lacking any specific role and particulars. The court proceeded to quash the FIR against the accused persons and noted that such a situation, if left unchecked, would result in the abuse of the process of law.

xxxx 2024:HHC:14370

17. Considering the dicta in *Mahmood Ali* (supra), we find that the High Court, in this case, has failed to exercise due care and has mechanically permitted the criminal proceedings to continue despite specifically finding that the allegations are general and omnibus in nature. The Appellants herein approached the High Court on inter alia grounds that the proceedings were re-initiated on vexatious grounds and even highlighted the commencement of divorce proceedings by Respondent No.

2. In these peculiar circumstances, the High Court had a duty to consider the allegations with great care and circumspection so as to protect against the danger of unjust prosecution."

21. It was laid down by the Hon'ble Supreme Court in *Kailashben Mahendrabhai Patel v. State of Maharashtra*, 2024 SCC OnLine SC 2621 that general and vague allegations of cruelty made against the husband and his relatives are not sufficient to constitute cruelty. It was observed:-

"10.1 The tendency to make general, vague, and omnibus allegations is noticed by this Court in many decisions. In *Usha Chakraborty v. State of W.B.* 2023 SCC OnLine SC 90, this court observed that:

"16... the respondent alleged commission of offences under Sections 323, 384, 406, 423, 467, 468, 420 and 120B, IPC against the appellants. A bare perusal of the said allegation and the ingredients to attract them, as adverted to hereinbefore, would reveal that the allegations are vague and they did not carry the essential ingredients to constitute the alleged offences.... The ingredients to attract the alleged offence referred to hereinbefore and the nature of the allegations contained in the application filed by the respondent would undoubtedly make it clear that the respondent had 2024:HHC:14370 failed to make specific allegations against the appellants herein in respect of the aforesaid offences. The factual position thus would reveal that the genesis as also the purpose of criminal proceedings are nothing but the aforesaid incident and further that the dispute involved is essentially of civil nature. The appellants and the respondents have given a cloak of criminal offence in the issue..."

10.2 Similarly, dealing with allegations lacking in particulars and details, in *Neelu Chopra v. Bharti* (2009) 10 SCC 184, this court observed that:

"7. ...what strikes us is that there are no particulars given as to the date on which the ornaments were handed over, as to the exact number of ornaments or their description and as to the date when the ornaments were asked back and were refused. Even the weight of the ornaments is not mentioned in the complaint, and it is a general and vague complaint that the ornaments were sometimes given in the custody of the appellants and they were not returned. What strikes us more is that even in Para 10 of the complaint, where the complainant says that she asked for her clothes and ornaments, which were given to the accused, and they refused to give these back, the date is significantly absent."

xxxx

12. The complaint also refers to a small incident where the complainant's brother accompanied her to the matrimonial house when appellants no. 1 and 3 are alleged to have refused to take her back, but on persuasion by her brother, she was allowed to stay. There is also a vague allegation that, when the complainant gave birth to a second child, appellants 1 and 2 came and "quarrelled" with the complainant, her brother, and her parents and threatened them. This Court had occasion to examine the phenomenon of general and omnibus allegations in the cases of matrimonial disputes.

2024:HHC:14370 In *Mamidi Anil Kumar Reddy v. State of A.P.* 2024 SCC OnLine SC 127, this Court observed that:

"14. ...A bare perusal of the complaint, statement of witnesses and the charge sheet show that the allegations against the Appellants are wholly general and omnibus in nature; even if they are taken in their entirety, they do not prima facie make out a case against the Appellants. The material on record neither discloses any particulars of the offences alleged nor discloses the specific role/allegations assigned to any of the Appellants in the commission of the offences.

15. The phenomenon of false implication by way of general omnibus allegations in the course of matrimonial disputes is not unknown to this Court. In *Kahkashan Kausar alias Sonam v. State of Bihar*, this Court dealt with a similar case wherein the allegations made by the complainant-wife against her in-laws u/s. 498A and others were vague and general, lacking any specific role and particulars. The court proceeded to quash the FIR against the accused persons and noted that such a situation if left unchecked, would result in the abuse of the process of law."

xxxx 13.1 In *Kahkashan Kausar v. State of Bihar* (2022) 6 SCC 599, this Court noticed the injustice that may be caused when parties are forced to go through tribulations of a trial based on general and omnibus allegations. The relevant portion of the observation is as under:

"11. ...in recent times, matrimonial litigation in the country has also increased significantly, and there is greater disaffection and friction surrounding the institution of marriage now more than ever. This has resulted in an increased tendency to employ provisions such as Section 498-A IPC as instruments to settle personal scores against the husband and his relatives.

2024:HHC:14370

18. ... upon a perusal of the contents of the FIR dated 1-4-2019, it is revealed that general allegations are levelled against the appellants. The complainant alleged that "all accused harassed her mentally and threatened her of terminating her pregnancy".

Furthermore, no specific and distinct allegations have been made against either of the appellants herein, i.e. none of the appellants have been attributed any specific role in furtherance of the general allegations made against them. This simply leads to a situation wherein one fails to ascertain the role played by each accused in furtherance of the offence. The allegations are, therefore, general and omnibus and can, at best, be said to have been made out on account of small skirmishes... However, as far as the appellants are concerned, the allegations made against them being general and omnibus, do not warrant prosecution.

21. ...it would be unjust if the appellants are forced to go through the tribulations of a trial, i.e. general and omnibus allegations cannot manifest in a situation where the relatives of the complainant's husband are forced to undergo trial. It has been highlighted by this Court in varied instances that a criminal trial leading to an eventual acquittal also inflicts severe scars upon the accused, and such an exercise must, therefore, be discouraged."

22. The witnesses have also not given the details on oath and made general statements.

22.1 Vijay Kumar (PW1) stated that after one month of the marriage, Yash Pal and his mother, Tripta Devi, started harassing Dimple and beating her in May 2007. They used to ask for dowry. Accused Sonia, Lucky and Kishori Lal used to harass Dimple.

2024:HHC:14370 22.2 Ajay Kumar (PW2) stated that accused Yash Pal, Tripta Devi, Kishori Lal, Sonia and Lucky used to torture and harass Dimple regarding the dowry. She was beaten by accused Tripta Devi and Yash Pal. He advised Dimple that her life would be normalised with time.

22.3 Amit Kumar (PW6) stated that Kishori Lal, Tripta Devi and Yash Pal harassed Dimple after some time of her marriage by saying that she could not perform household chores and insufficient dowry was given in the marriage. Brother-in-law of Dimple, Lucky and her sister-in-law also used to harass Dimple. Tripta and Yash Pal had given beatings to Dimple twice. The matter was not reported to save the marital life. 22.4. Nirmala Devi (PW7) stated that there was a minor conflict between the parents of Yash Pal and other relatives during the ribbon ceremony. Father-in-law, mother-in-law, sister-in-law, Sonia, brother-in-law Lucky and husband Yash Pal used to harass Dimple on account of dowry and trivial matters. The accused were not satisfied with the shagun

given on different occasions. Dimple revealed that Yash Pal and Tripta had given beatings to her. She did not report the matter to the police 2024:HHC:14370 and told Dimple that everything would become normal after some time.

22.5. Punam Sharma (PW8) stated that the accused used to harass and maltreat Dimple on the pretext of dowry. She had told her about the harassment.

23. It is apparent from these testimonies that they did not contain any particulars of harassment. They did not mention any month or date or even the kind of harassment. It was stated that Yash Pal and his mother gave beatings to Dimple twice, but no particulars were given. The witnesses stated that Dimple told them about the beatings, but they said that she should continue with her married life and that everything would become normal. It is difficult to believe that relatives of Dimple would not have taken any action when they were told about the harassment. The fact that they advised Dimple to continue with her marital life shows that the matter was not considered serious enough to warrant any interference.

24. The informant stated that beatings were given to Dimple in May. It is difficult to believe that no action would have been taken by the informant about the beatings given to his 2024:HHC:14370 daughter on the pretext that everything would become normal with time. Beating a person is a serious matter that cannot be wished away by saying that everything will improve with time. The conduct of the informant and his wife leads to an inference that no such beatings were given, and an incorrect statement was made regarding the same after a lapse of time.

25. The prosecution has also relied upon the incident dated 9.2.2011 and 10.2.2011. Amit Kumar (PW6) stated that he had gone to the house of the accused with his brother Naveen for the Mundan ceremony of Krish, son of Dimple. When he offered shagun to the accused, they were dissatisfied with it as they wanted some gold ornaments. He told this fact to his father, who went to the house of the accused on 10.2.2011 and paid an amount of 5100/- to the accused, Kishori Lal, to purchase ornaments. Dimple told Monika during the ceremony that she was being harassed by the accused and that she would end her life by consuming poison. Monika advised her not to take such an extreme step.

26. Monika (PW9) stated that she had gone to the matrimonial home of Dimple to attend the Mundan ceremony of Krish. Dimple was upset, as the accused used to harass her. She 2024:HHC:14370 (Dimple) said that she was so upset that she would end her life. She (Monika) advised her not to take such an extreme step. She returned to her home and found that Dimple had died.

27. Her testimony is not satisfactory. Dimple told her about the harassment and also that she would end her life; however, she did not do anything and simply went to her home. She stated in her cross-examination that she had not even narrated this fact to Dimple's mother or any other member of Dimple's family. It is difficult to believe that a person being told about an intention to commit suicide by another would not take any steps to prevent such an act. Normal conduct for a person would have been to inform the family members of Dimple, but she did not do so. Any person would

have taken steps to ensure the safety of Dimple in such circumstances, but she also did not do so. Therefore, it is difficult to believe that Dimple had told her about the harassment and intention to take her life.

28. Poonam Sharma (PW8) stated that Dimple told her that the accused used to harass her. She (Dimple) also told her to save her within two or three days. She replied that she would come to her on the next day and take her back. She found in the evening that Dimple had died. She also admitted in her cross-

2024:HHC:14370 examination that she had not told this fact to the parents of Dimple, that Dimple had asked her to save her within 2-3 days. Again, the testimony of this witness is highly unsatisfactory. She did not narrate this fact to the parents of the deceased. She did not take any action when she was told by the deceased to take her life away to save her. As already stated, any normal person would have taken steps to ensure the safety of the deceased by removing her away from the accused. As per the deceased, the respondents were harassing her, forcing her to take away her life. Therefore, in these circumstances, the learned Trial Court had rightly rejected the testimonies of these witnesses.

29. Ajay Kumar (PW2) stated that Monika told him that the deceased had expressed her intention to commit suicide, which is contrary to the statement of Monika, who categorically stated in her cross-examination that she had not told anyone about the intention of Dimple to end her life. Therefore, his statement, apart from being hearsay, is contrary to the statement of Monika and cannot be relied upon.

30. Informant Vijay Kumar stated that he was told about the demand for ornament by his son Amit Kumar telephonically. He told Amit that he would attend the ceremony on 10.02.2011.

2024:HHC:14370 Monika also told him about the wish of Dimple to consume poison due to the harassment by the accused. He attended the Mundan ceremony and handed over Shagun of 5100/- to Kishori Lal. Amit had also told him about the taunts to Dimple for not bringing the gold ornament. He attended the Mundan and handed over 5100/- as Shagun.

31. The statement of this witness is also not satisfactory. As per him, he was told about the harassment/taunts by the accused for not bringing the gold ornament. He was also told about Dimple's wish to commit suicide; however, he went to attend the Mundan ceremony and returned as if nothing had happened. A father being told about the harassment and desire of his daughter to end her life due to the harassment could have at least taken the daughter with him to diffuse the situation. He would have taken some steps to ensure the safety of his daughter by calling the respectable persons of the society, but he did not do anything and simply returned. This conduct shows that no such complaints were made to him, or they were not serious enough to warrant any action.

32. Nirmala (PW7), the mother of Dimple, stated that she received a call from her son on 09.02.2011, who told her that the 2024:HHC:14370 accused were demanding gold ornaments as

Shagun. Her husband paid 5100/-. The accused abused her husband on the telephone. A call was received from Kishori Lal at 8:30 pm that the condition of Dimple was serious.

33. Her statement is also not satisfactory. She stated that gold ornament was demanded, but there is nothing to show that she had taken any steps to ensure that this demand would not harm Dimple. She admitted in her cross-examination that no demand was made in her presence, which makes it difficult to believe the version of this witness.

34. Nimala (PW7) and Monika (PW9) admitted that Sonia was married and was residing in Delhi. They also admitted that Rahul is serving at Chandigarh. Nirmala (PW7) admitted that Yashpal was in the Army and he was of peaceful temperament. Therefore, as per these statements, Sonia and Rahul were not residing with Dimple, and it is difficult to believe that they would have harassed the deceased. Hence, the learned Trial Court had rightly held that the evidence relating to the harassment of the deceased was not satisfactory.

2024:HHC:14370

35. It was laid down by Hon'ble Supreme Court in Naresh Kumar versus the State of Haryana (2024) 3 SCC 573 that the prosecution is required to prove that the accused had created such circumstances that the deceased was left with no other option but to commit suicide. The Court cannot conclude that a woman was being harassed because she had committed a suicide. It was observed:

"17. This Court in *Geo Varghese v. State of Rajasthan* [*Geo Varghese v. State of Rajasthan*, (2021) 19 SCC 144], considering the provisions of Section 306IPC along with the definition of abetment under Section 107IPC observed as under : (SCC pp. 149-50, paras 14-16) "14. Section 306IPC makes abetment of suicide a criminal offence and prescribes punishment for the same. ...

15. The ordinary dictionary meaning of the word "instigate" is to bring about or initiate, incite someone to do something. This Court in *Ramesh Kumar v. State of Chhattisgarh* [*Ramesh Kumar v. State of Chhattisgarh*, (2001) 9 SCC 618: 2002 SCC (Cri) 1088], has defined the word "instigate" as under :

(SCC p. 629, para 20) '20. Instigation is to goad, urge forward, provoke, incite or encourage to do "an act".'

16. The scope and ambit of Section 107 IPC and its co-relation with Section 306 IPC have been discussed repeatedly by this Court. In *S.S. Chheena v.*

Vijay Kumar Mahajan [*S.S. Chheena v. Vijay Kumar Mahajan*, (2010) 12 SCC 190 : (2011) 2 SCC (Cri) 465], it was observed as under : (SCC p. 197, para 25) 2024:HHC:14370 '25. Abetment involves a mental process of instigating a person or intentionally aiding a person in doing of a thing. Without a positive act on the part of the accused to instigate or aid in committing suicide, conviction cannot

be sustained. The intention of the legislature and the ratio of the cases decided by the Supreme Court is clear that in order to convict a person under Section 306IPC, there has to be a clear mens rea to commit the offence. It also requires an active act or direct act which led the deceased to commit suicide seeing no option, and that act must have been intended to push the deceased into such a position that he committed suicide.' "

18. This Court in *M. Arjunan v. State* [*M. Arjunan v. State*, (2019) 3 SCC 315 : (2019) 2 SCC (Cri) 219], while explaining the necessary ingredients of Section 306 IPC in detail, observed as under : (SCC p. 317, para 7) "7. The essential ingredients of the offence under Section 306IPC are (i) the abetment and (ii) the intention of the accused to aid or instigate or abet the deceased to commit suicide. The act of the accused, however, insulting the deceased by using abusive language will not, by itself, constitute the abetment of suicide. There should be evidence capable of suggesting that the accused intended by such an act to instigate the deceased to commit suicide. Unless the ingredients of instigation/abetment to commit suicide are satisfied, the accused cannot be convicted under Section 306IPC."

19. This Court in *Ude Singh v. State of Haryana* [*Ude Singh v. State of Haryana*, (2019) 17 SCC 301 : (2020) 3 SCC (Cri) 306], held that to convict an accused under Section 306IPC, the state of mind to commit a particular crime must be visible with regard to determining the culpability. It was observed as under : (SCC pp. 321-22, para 16) 2024:HHC:14370 "16. In cases of alleged abetment of suicide, there must be proof of direct or indirect act(s) of incitement to the commission of suicide. It could hardly be disputed that the question of the cause of suicide, particularly in the context of an offence of abetment of suicide, remains a vexed one, involving multifaceted and complex attributes of human behaviour and responses/reactions. In the case of an accusation of abetment of suicide, the court would be looking for cogent and convincing proof of the act(s) of incitement to the commission of suicide. In the case of suicide, mere allegation of harassment of the deceased by another person would not suffice unless there be such action on the part of the accused which compels the person to commit suicide, and such an offending action ought to be proximate to the time of occurrence. Whether a person has abetted in the commission of suicide by another or not could only be gathered from the facts and circumstances of each case.

16.1. For the purpose of finding out if a person has abetted the commission of suicide by another, the consideration would be if the accused is guilty of the act of instigation of the act of suicide. As explained and reiterated by this Court in the decisions above referred, instigation means to goad, urge forward, provoke, incite or encourage to do an act. If the persons who committed suicide had been hypersensitive and the action of the accused is otherwise not ordinarily expected to induce a similarly circumstanced person to commit suicide, it may not be safe to hold the accused guilty of abetment of suicide. But, on the other hand, if the accused, by his acts and by his continuous course of conduct, creates a situation which leads the deceased perceiving no other option except to commit suicide, the case may fall within the four corners of Section 306IPC. If the accused plays an active role in tarnishing the self-esteem and self-

2024:HHC:14370 respect of the victim, which eventually draws the victim to commit suicide, the accused may be held guilty of abetment of suicide. The question of mens rea on the part of the accused in such cases would be examined with reference to the actual acts and deeds of the accused, and if the acts and deeds are only of such nature where the accused intended nothing more than harassment or snap show of anger, a particular case may fall short of the offence of abetment of suicide. However, if the accused kept on irritating or annoying the deceased by words or deeds until the deceased reacted or was provoked, a particular case may be that of abetment of suicide. Such being the matter of delicate analysis of human behaviour, each case is required to be examined on its own facts while taking note of all the surrounding factors having bearing on the actions and psyche of the accused and the deceased."

20. This Court in *Mariano Anto Bruno v. State* [*Mariano Anto Bruno v. State*, (2023) 15 SCC 560: 2022 SCC OnLine SC 1387], after referring to the above-referred decisions rendered in the context of culpability under Section 306IPC observed as under : (SCC para 45) "45. ... It is also to be borne in mind that in cases of alleged abetment of suicide, there must be proof of direct or indirect acts of incitement to the commission of suicide. Merely on the allegation of harassment without there being any positive action proximate to the time of occurrence on the part of the accused which led or compelled the person to commit suicide, a conviction in terms of Section 306IPC is not sustainable."

21. This Court in *Gurcharan Singh v. State of Punjab* [*Gurcharan Singh v. State of Punjab*, (2020) 10 SCC 200 : (2021) 1 SCC (Cri) 417], observed that whenever a person instigates or intentionally aids by any act or illegal omission, the doing of a thing, a person can be said to have abetted in doing that thing. To prove the offence of 2024:HHC:14370 abetment, as specified under Section 107IPC, the state of mind to commit a particular crime must be visible to determine the culpability.

22. This Court in *Kashibai v. State of Karnataka* [*Kashibai v. State of Karnataka*, (2023) 15 SCC 751: 2023 SCC OnLine SC 575], observed that to bring the case within the purview of "abetment" under Section 107IPC, there has to be an evidence with regard to the instigation, conspiracy or intentional aid on the part of the accused and for the purpose proving the charge under Section 306IPC, also there has to be an evidence with regard to the positive act on the part of the accused to instigate or aid to drive a person to commit suicide.

23. Had there been any clinching evidence of incessant harassment on account of which the wife was left with no other option but to put an end to her life, it could have been said that the accused intended the consequences of his act, namely, suicide. A person intends a consequence when he (1) foresees that it will happen if the given series of acts or omissions continue and (2) desires it to happen. The most serious level of culpability, justifying the most serious levels of punishment, is achieved when both these components are actually present in the accused's mind (a "subjective" test).

24. For intention in English law, Section 8 of the Criminal Justice Act, 1967, provides the frame in which the mens rea is assessed. It states:

"A court or jury, in determining whether a person has committed an offence,

(a) shall not be bound in law to infer that he intended or foresaw a result of his actions by reasons only of its being a natural and probable consequence of those actions but

(b) shall decide whether he did intend or foresee that result by reference to all the evidence, drawing such inferences from the evidence as appear proper in the circumstances."

2024:HHC:14370 Under Section 8(b), therefore, the jury is allowed wide latitude in applying a hybrid test to impute intent or foresight on the basis of all the evidence.

25. It is now well settled that in order to convict a person under Section 306IPC, there has to be a clear mens rea to commit the offence. Mere harassment is not sufficient to hold an accused guilty of abetting the commission of suicide. It also requires an active act or direct act which led the deceased to commit suicide. The ingredient of mens rea cannot be assumed to be ostensibly present but has to be visible and conspicuous.

26. We take notice of the fact that the High Court has laid much emphasis on Section 113-A of the Evidence Act.

27. Section 113-A of the Evidence Act reads thus:

"113-A. Presumption as to abetment of suicide by a married woman.--When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her husband or such relative of her husband had subjected her to cruelty, the court may presume, having regard to all the other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband.

Explanation.--For the purposes of this section, "cruelty" shall have the same meaning as in Section 498-A of the Indian Penal Code (45 of 1860)."

28. This Section was introduced by the Criminal Law (Second Amendment) Act 46 of 1983. The Penal Code, the Code of Criminal Procedure, 1973 and the Evidence Act were amended keeping in view the dowry death problems in India.

29. Section 113-A of the Evidence Act requires proof : (1) that her husband or relatives subjected her to cruelty and 2024:HHC:14370 (2) that the married woman committed suicide within a period of seven years from the date of her marriage.

30. Although it is not necessary for us to refer to Section 113-B of the Evidence Act, which raises a presumption as to dowry death yet, with a view to indicate the fine distinction between the two presumptions, we are referring to Section 113-B. In Section 113-A, the legislature has used the word

"may", whereas in Section 113-B, the word used is "shall".

31. In this appeal, we are concerned with Section 113-A of the Evidence Act. The mere fact that the deceased committed suicide within a period of seven years of her marriage, the presumption under Section 113-A of the Evidence Act, would not automatically apply. The legislative mandate is that where a woman commits suicide within seven years of her marriage, and it is shown that her husband or any relative of her husband had subjected her to cruelty, the presumption under Section 113-A of the Evidence Act may be raised, having regard to all other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband.

32. What is important to note is that the term "the court may presume having regard to all other circumstances of the case that such suicide had been abetted by her husband" would indicate that the presumption is discretionary, unlike the presumption under Section 113-B of the Evidence Act, which is mandatory. Therefore, before the presumption under Section 113-A is raised, the prosecution must show evidence of cruelty or incessant harassment in that regard.

33. The court should be extremely careful in assessing evidence under Section 113-A for finding out if cruelty was meted out. If it transpires that a victim committing suicide was hypersensitive to ordinary petulance, discord and differences in domestic life quite common to the society to which the victim belonged and such petulance, discord and differences were not expected to induce a similarly 2024:HHC:14370 circumstanced individual in a given society to commit suicide, the conscience of the court would not be satisfied for holding that the accused charged of abetting the offence of suicide was guilty.

34. Section 113-A has been interpreted by this Court in *Lakhjit Singh v. State of Punjab* [Lakhjit Singh v. State of Punjab, 1994 Supp (1) SCC 173: 1994 SCC (Cri) 235], *Pawan Kumar v. State of Haryana* [Pawan Kumar v. State of Haryana, (1998) 3 SCC 309: 1998 SCC (Cri) 740] and *Shanti v. State of Haryana* [Shanti v. State of Haryana, (1991) 1 SCC 371: 1991 SCC (Cri) 191].

35. This Court has held that from the mere fact of suicide within seven years of marriage, one should not jump to the conclusion of abetment unless cruelty was proved. The court has the discretion to raise or not to raise the presumption because of the words "may presume". It must take into account all the circumstances of the case, which is an additional safeguard.

36. In the absence of any cogent evidence of harassment or cruelty, an accused cannot be held guilty of the offence under Section 306IPC by raising a presumption under Section 113-A. xxxx

38. The question is: On what and where did the two courts falter? In our opinion, the two courts faltered as they failed to apply the correct principles of law to the evidence on record on the subject of abetment of suicide. The two courts got enamoured by just three things : (i) the deceased committed suicide within seven years of marriage, (ii) the accused was demanding money from the parents of the deceased for starting some business, and

(iii) the deceased used to remain tense. We do not say that these are irrelevant considerations. All the three aspects are relevant. But there are settled principles of law to be made applicable to the matters of the present type."

2024:HHC:14370

36. Narayan Dass (PW4) stated that he took the deceased to the hospital, and she narrated on the way that she had consumed the poison by mistake. The fact that the accused had taken the deceased to the hospital was not disputed by the prosecution. The conduct of the accused is inconsistent with their guilt. It was laid down by the Hon'ble Supreme Court in State of Rajasthan v. Prithvi Raj, 1995 Supp (3) SCC 410: 1995 SCC (Cri) 934 that where the accused took the deceased to the hospital, it is quite consistent with their innocence. It was observed at page 412:

"5. It is true, as contended by the learned counsel that the manner of appreciation of the evidence in respect of the dying declaration is not altogether sound. But the High Court has rightly held that the immediate conduct of the accused and his parents in rushing the deceased to the hospital immediately by arranging a jeep is quite consistent with their being innocent. However, we find that the overall reasoning of the High Court in giving the benefit of the doubt to the accused cannot be said to be wholly unsound and does not stand judicial scrutiny..."

37. Therefore, the learned Trial Court had taken a reasonable view based on the evidence led before it, and this Court will not interfere with the same while deciding an appeal against acquittal.

2024:HHC:14370

38. In view of the above, the present appeal fails, and the same is dismissed.

39. In view of the provisions of Section 437-A of the Code of Criminal Procedure (Section 481 of Bhartiya Nagarik Suraksha Sanhita, 2023) the respondents/accused are directed to furnish bail bonds in the sum of 25,000/-each with one surety each in the like amount to the satisfaction of the learned Trial Court within four weeks, which shall be effective for six months with stipulation that in the event of Special Leave Petition being filed against this judgment, or on grant of the leave, the respondents/accused on receipt of notice thereof, shall appear before the Hon'ble Supreme Court.

40 A copy of this judgment along with the record of the learned Trial Court be sent back forthwith. Pending applications, if any, also stand disposed of.

(Vivek Singh Thakur) Judge (Rakesh Kainthla) Judge 13th December, 2024 (Chander)